



IN THE HIGH COURT OF PUNJAB AND HARYANA  
AT CHANDIGARH

158

CWP No.19190 of 2026

DATE OF DECISION : 12<sup>th</sup> JUNE, 2026

EHC Budh Ram & others

.... Petitioners

Versus

State of Haryana & others

.... Respondents

CORAM : HON'BLE MR. JUSTICE ROHIT KAPOOR

\* \* \* \*

Present : Mr. Suresh Saran, Advocate for the petitioners.

\* \* \* \*

ROHIT KAPOOR, J. (Oral)

1. The instant petition has been filed under Articles 226/227 of the Constitution of India for issuance of an appropriate writ, order or direction to the respondents No.3 to 12 for not sending the petitioners for Lower School Course, 2025, as the petitioners were selected for promotion List-B-1 under 35% seniority-cum-fitness category which is likely to commence in the month of June, 2026 at Madhuban, Karnal for training, whereas the petitioners have given their unwillingness.

2. At the very outset, learned counsel for the petitioners submits that similar controversy has already been decided by this Court vide decision dated 04.09.2025 passed in *CWP No.24483 of 2025*, titled '*EHC Sandeep Kumar and others Vs. State of Haryana and others*', wherein it has been held that the petitioners cannot be compelled to undergo the Lower School Course and thereafter, seek promotions.

3. Notice of motion.

4. Mr. Viney Saini, AAG, Haryana, accepts notice on behalf of the respondents-State and submits that aggrieved against the aforesaid



order dated 04.09.2025 passed in *Sandeep Kumar’s case (supra)*, and intra-Court appeal bearing *LPA No.122 of 2026*, titled ‘*State of Haryana and others Vs. Sandeep Kumar and others*’ stands filed, wherein notice of motion has been issued, but no interim order has been passed.

5. Taking into consideration that the similar issue has already been decided in the case of *Sandeep Kumar (supra)* and there is no interim order passed in intra-Court appeal bearing *LPA No.122 of 2026*, the present writ petition is *disposed of* with a direction to the respondents to re-consider the case of petitioners for the propose of undergoing Lower School Course of the year 2024 in terms of *Sandeep Kumar’s case (supra)*.

6. It is made clear that the orders passed in the present petition shall abide by the final decision in LPA-122-2026.

12<sup>th</sup> June, 2026  
‘raj’

( ROHIT KAPOOR )  
JUDGE

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|-----------------------------------|------------|-----------|
| <i>Whether speaking/reasoned:</i> | <i>Yes</i> | <i>No</i> |
| <i>Whether Reportable:</i>        | <i>Yes</i> | <i>No</i> |